



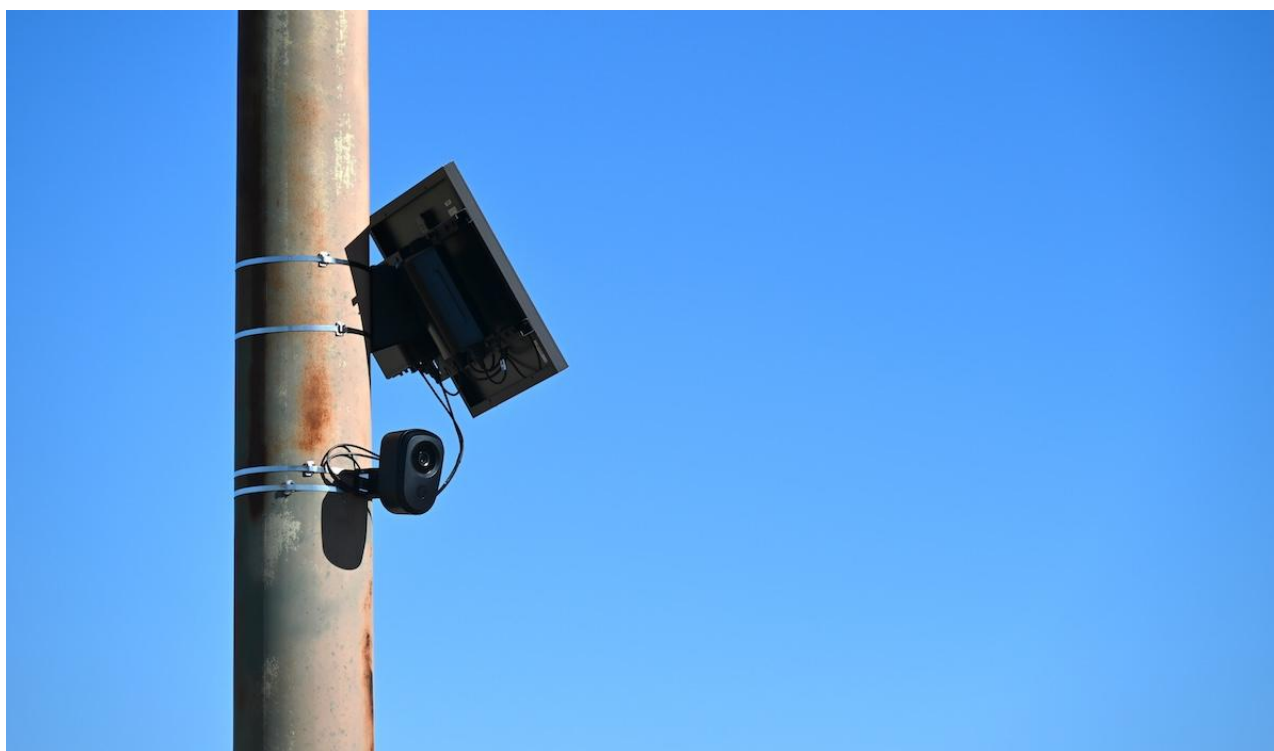
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'Indiscriminate mass surveillance': Judge says ALPR search violated Fourth Amendment in meth case

By **Tristan Loveless** - Monday, October 5, 2026



Flock Safety cameras and other automated license plate readers have proliferated across the country in recent years and have drawn concerns about whether they violated Americans' Fourth Amendment rights. (Blake Douglas)



In a case involving about 100 pounds of methamphetamine, U.S. District Judge Sara Hill ruled in favor of a **motion to suppress** evidence obtained after Tulsa County Deputy Sheriff Freddie Alaniz ran the license plate of Melisa Susan Kyle through two automated readers before detaining her and searching her vehicle. The decision tees up a potential challenge by prosecutors that could see federal appellate courts address the growing constitutional questions surrounding Flock Safety and other automated camera systems.

Issued last week, Hill's ruling found both that the officer lacked **reasonable suspicion** to "extend" the initial traffic stop and determined his use of an automated license plate reader, or ALPR, before initiating the traffic stop likely constituted a **warrantless search** under the **Fourth Amendment**.

"Alaniz's search in just the ALPR system provided him with more than 50 individual records of Kyle's whereabouts across the country for an entire month. The court finds that because the ALPR systems Alaniz used to search Kyle's historical location information intruded on her reasonable expectation of privacy in the whole of her physical movements, it was a search under the Fourth Amendment," Hill wrote in her **Oct. 1 order**. "Based on the information in the record, the only reason Alaniz conducted that search was because he saw her license plate was from California. That search was not supported by probable cause, and it was done without a warrant in violation of Kyle's Fourth Amendment rights."

Kyle was **charged** May 19 in the U.S. District Court for the Northern District of Oklahoma with one count of possession with intent to distribute methamphetamine after a search of her vehicle on I-44 in east Tulsa found more than 44,000 grams of the substance. Her attorneys argued illegal tactics used by police — primarily the search of ALPR databases without a warrant — leading up to her arrest required suppression of the evidence, and Hill ultimately agreed.

Hill's ruling becomes the first finding that use of ALPRs — such as **Flock Safety** cameras — without probable cause or a warrant violates the constitution. The finding is also contrary to other Oklahoma

judges' prior rulings.

“Based on the court’s research, it appears that nearly every court examining the issue to date has determined that ALPR technology use is not a search under the Fourth Amendment because people have no reasonable expectation of privacy in their movements on public streets. Indeed, several other Oklahoma federal courts have decided the issue this way,” Hill wrote. “The underlying principle to take away from [[Carpenter v. U.S.](#)] and [[Chatrue v. U.S.](#)] is that people ‘have a reasonable expectation of privacy in the whole of their physical movements.’ The use of the ALPR camera system described by Alaniz in this case credibly invokes concerns raised in both [Carpenter](#) and [Chatrue](#). Alaniz had access to an entire month’s worth of location data tied to the license plate on Kyle’s car, including more than 50 sightings across multiple states.”

With Hill ruling most of the evidence collected against Kyle inadmissible, prosecutors for the U.S. Attorney’s Office in the Northern District will have to choose between dismissing the case, proceeding with less evidence or appealing the ruling to 10th Circuit Court of Appeals in Denver. Hill noted that higher court reviews of the topic could be inevitable given the widespread adoption of and controversy around ALPR systems.

“Neither the 10th Circuit nor the Supreme Court have decided whether law enforcement’s use of ALPR technology is a search for Fourth Amendment purposes,” Hill wrote. “The issue is still working its way through trial and appellate courts across the country.”

California plates, ALPRs, traffic stops, meth lead to complicated court case

Kyle’s case originated from a traffic stop in east Tulsa. A little after 6 p.m. Sunday, May 10 — Mother’s Day — Alaniz noticed Kyle’s California license plate and entered its information into two ALPR databases known as Flock and [Vehicle Manager](#), a Motorola system. He wrote “traffic violation” as the reason for his Flock search and “investigation” for his Vehicle Manager search. However, Kyle had yet to commit a traffic violation when the ALPR search was undertaken, and Alaniz’s only basis for suspicion involved her out of state license plate.

The ALPR search showed Kyle “had made a very quick turnaround trip to the western part of the country,” according to prosecutors’ brief in opposition to the motion to suppress.

“Deputy Alaniz knows from his training and experience as a drug trafficking interdiction officer that individuals involved in transporting illegal drugs often make very short round trips to drug source cities in the western United States,” assistant U.S. Attorney Tyston McCoy wrote.



President Joe Biden nominated former Cherokee Nation Attorney General Sara Hill to be a federal judge in October 2023. (Provided)

Suspecting the vehicle might be driven by a drug trafficker, Alaniz followed and allegedly observed the vehicle **fail to give a turn signal** for 100 feet before switching lanes and **following within a car length** of another vehicle. (Kyle's attorneys argued the dash camera footage failed to support both allegations, but Hill found the car length related allegation gave Alaniz an "objectively reasonable" basis to stop Kyle).

After observing the violations, Alaniz initiated a traffic stop and approached Kyle's Mazda. Kyle had her windows down as he approached and a lit cigarette, which Alaniz asked her to put out before requesting her license and registration.

Kyle did not have all of the car information because she said the vehicle was a rental, so Alaniz asked her to come to his patrol car and questioned her.

Kyle told Alaniz she had recently taken a short trip to California and had so much luggage because she was bringing home gifts for her kids. She also said she bought and resold items from garage sales and flea markets for a living. She said she was recently divorced and had been traveling more. She said she was visiting family and friends in California, just "sitting around bullshitting."

Alaniz then questioned Kyle about her trip before returning her license and giving her a warning. Hill noted this interaction ended the initial traffic stop and, after this point, was when the stop "extended."

Alaniz then asked if Kyle would answer more questions, and she agreed. Alaniz said he was looking for drug traffickers, was suspicious of her short trip to California and asked to search her vehicle. Kyle denied the request, and Alaniz detained her before calling a drug dog, which alerted on the vehicle.

After she was detained but before the drug dog arrived, Kyle admitted to possessing marijuana.

"I am not worried at all for a little bit of marijuana," Alaniz said. "That's not what I'm looking for."

After searching the vehicle, Alaniz found more than 44,000 grams of methamphetamine and \$7,000 in cash. Kyle's attorneys argued Alaniz's use of the ALPRs violated her Fourth Amendment rights since the basis of her initial stop was the result of what she alleged was an illegal warrantless search of the Flock and Vehicle Manager databases. Attorneys for the government argued courts have repeatedly upheld that searches of ALPR databases do not violate the constitution.

Hill ultimately sided with Kyle, arguing the warrantless use of ALPRs crossed the line of acceptable surveillance.

“[ALPRs] could track and log a couple struggling to start a family at the fertility clinic. It could show how often someone visits a liquor store or casino. It could show which doctor someone goes to or what lawyer’s office someone visits. It also collects mundane information about people’s commutes, but it collects a tremendous amount of such information all the time,” Hill wrote. “But this leaves the question of why is it the government’s business where *everyone goes all the time*? The government cannot go snooping through our personal lives and business without an adequate basis to do so. That is what the Supreme Court has said since its (1967) decision in [[Katz v. United States](#)] through its decision in *Chatrpie* this year, nearly sixty years later. It is not too much to draw the line at indiscriminate mass surveillance.”

While it’s currently unclear if Kyle’s case will be appealed to the 10th Circuit, a case involving similar facts will almost certainly eventually work its way to Denver since the 10th Circuit’s precedent is silent on the general constitutionality of ALPR searches under modern U.S. Supreme Court precedent.

Hill emphasized how technology that “serves up” information “to law enforcement on demand” requires scrutiny.

“Think about it this way,” Hill wrote. “We might reasonably expect our friends and family to tell us something like: ‘Hey, I saw you out driving by the store last week.’ But we do not expect people we know — let alone strangers, and especially not law enforcement—to randomly approach us to say: ‘Hey, I have been following your car for the last 30 days, and here is a detailed log of every place your vehicle has been with supporting photographic evidence. I am also going to share this information with law enforcement throughout the country so they know your whereabouts, too.’ Freedom from persistent, dragnet-style surveillance while in public is not a foreign concept in our society, and it is a reasonable expectation that society already accepts.”

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